

SENATE No. 2855

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 11, 2025.

The committee on Education to whom was referred the petition (accompanied by bill, Senate, No. 338) of Sal N. DiDomenico, Nick Collins and Michael O. Moore for legislation to promote high-quality comprehensive literacy instruction in all Massachusetts schools, report the accompanying bill (Senate, No. 2855).

For the committee,
Jason M. Lewis

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**In the One Hundred and Ninety-Fourth General Court
(2025-2026)**

An Act promoting high-quality comprehensive literacy instruction in all Massachusetts schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 55A of chapter 15 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out, in lines 56 to 59, inclusive, the words “(6)
3 review the progress of overall student achievement and; (7) evaluate student performance, school
4 and district management, overall district governance and any other areas deemed necessary by
5 the office” and inserting in place thereof the following words:- (6) evaluate the alignment of
6 literacy instructional materials and curricula with department-recommended evidence-based
7 literacy instruction and high-quality curricula, as those terms are defined in section 1U of chapter
8 69; (7) review the progress of overall student achievement; and (8) evaluate student performance,
9 school and district management, overall district governance and any other areas deemed
10 necessary by the office.

11 SECTION 2. Section 1S of said chapter 69, as appearing in the 2024 Official Edition, is
12 hereby amended by striking out, in line 41, the words “and (J)” and inserting in place thereof the
13 following words:- “(J) implementing evidence-based literacy instruction; and (K).”

SECTION 3. Said section 1S of said chapter 69, as so appearing, is hereby further amended by inserting after the word “subgroups”, in line 48, the following words:- “; and provided further, that district plans shall address implementation and compliance with section 1U.”

SECTION 4. Chapter 69 of the General Laws is hereby amended by adding the following new section after section 1T:-

Section 1U. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Evidence-based literacy instruction”, literacy instruction that is: (i) grounded in scientific research methods; and (ii) demonstrated through well-designed and well-implemented studies to produce significant and positive effects on student learning outcomes.

“Five research-based areas in reading instruction”, reading instruction that includes, but shall not be limited to, phonemic awareness, phonics, fluency, vocabulary and comprehension.

“High-quality curriculum”, curriculum reviewed and approved by the department.

(b) Districts shall select high-quality curricula to meet the curriculum frameworks pursuant to section 1E for kindergarten through grade 3 literacy that: (i) include instruction in the five research-based areas in reading instruction; (ii) utilize and are based upon evidence-based literacy instruction; and (iii) improves competency in the areas of vocabulary development and oral language.

(c) The department shall provide tools and resources to aid districts in providing adequate professional development aligned with evidence-based literacy instruction and scientifically-

based reading research for literacy teachers, paraprofessionals, and reading specialists in grades pre-kindergarten through third grade.

(d) The department shall create and maintain: (i) A list of department-approved, high-quality professional development programs and vendors aligned with evidence-based literacy instruction best practices and scientifically-based reading research; (ii) A set of online training modules available and free to all teachers that provide training on the foundational practices and pedagogy aligned with evidence-based literacy instruction best practices and scientifically-based reading research; and (iii) a list of high-quality curricula. Said lists and modules shall be updated as often as practicable to remain current with best practices and new curriculum releases.

(e) (1) A district may apply to the department for a waiver to use kindergarten through grade 3 literacy instruction curriculum that does not appear on the department's list of high-quality curricula and that has not already been reviewed by the department.

(2) In determining whether to approve a district's waiver for a curriculum that is not already on the department's list of high-quality curricula and that has not already been reviewed by the department, the department shall assess whether the district's curriculum utilizes evidence-based literacy practices and is high-quality.

(3) A district shall report to the department during the waiver period any student data as requested.

(4) Curriculum used on a waiver that is assessed and approved by the department and deemed to meet the requirements of this section shall be allowed to continue as an approved literacy curriculum used for instruction in the district following the expiration of the waiver unless the waiver is rescinded pursuant to paragraph (7).

(5) A district that receives a waiver pursuant to this subsection shall publicly post to its website any report submitted to the department with information required pursuant to paragraph (2) and curriculum samples.

(6) The department may audit approved waivers at any time. The audit shall include, but shall not be limited to: (i) an in-depth review of curriculum materials; (ii) instructional documentation; and (iii) instructional practices in the classroom.

(7) The department may rescind approval of a waiver based on audit findings before the expiration of the waiver.

SECTION 5. Said Chapter 69 is hereby amended by inserting after section 1U, the following new section:-

Section 1V. (a) (1) Annually, not later than August 15, the department shall identify a list of data requirements that districts shall report on related to curricula consistent with evidence-based literacy instruction as defined by section 1U of this chapter. The department shall publish the list of data requirements on the department's website.

(2) Annually, not later than October 31, each district shall report to the department the data required by the department pursuant to paragraph (1).

(b) Annually, not later than December 31, the department shall aggregate data collected from each district pursuant to subsection (a), prepare and publish a report on the aggregated data and file the report with the clerks of the house of representatives and the senate and the joint committee on education. The department shall publish the report on the department's website.

SECTION 6. Section 38G of chapter 71 of the General Laws, as so appearing, is hereby amended by inserting after the word “personnel”, in line 281, the following:-

provided that policies and guidelines must include alignment with evidence-based literacy instruction for educator preparation programs to be approved.

SECTION 7. Said chapter 71 is hereby further amended by inserting after section 57A the following 2 sections:-

Section 57B. (a) For the purposes of this section and section 57C, the term “screening assessments” shall mean tools and assessments that can be used to identify students at risk for poor academic outcomes as determined by the department.

(b) The department, in consultation with the department of early education and care, shall issue guidelines to districts requiring screening procedures and protocols for reading ability and progress in literacy skills for all students in kindergarten through grade 3 using screening assessments. The guidelines shall include a threshold at which a student is determined to be “significantly below” the grade level benchmark. The commissioner shall annually publish data on which screening assessments are employed by each district to conduct reading screening.

Section 57C. (a) Each district shall assess each student’s reading ability and progress in literacy skills from kindergarten through at least grade 3, using a screening assessment approved by the department. The frequency of the screening assessment shall be determined by the commissioner but shall be no less than twice per school year. The screening assessment of the student’s reading ability and progress shall be consistent with section 2 of chapter 71B, the department’s dyslexia guidelines issued pursuant to section 57A and literacy guidelines issued pursuant to section 57B.

(b) If a screening assessment determines that a student is significantly below relevant grade level benchmarks in specific literacy skills, the district shall determine which actions within the general education program will meet the student's needs, including, but not limited to, differentiated or supplementary evidence-based reading instruction and ongoing monitoring of progress. Not later than 30 days after a screening result that determines a student is significantly below the relevant grade level benchmark, the district shall inform the student's parent or guardian of the screening results and the school's response and shall offer the opportunity for a follow-up discussion

SECTION 8. Notwithstanding any general or special law to the contrary, if a school district does not teach a high-quality curriculum, as defined by section 1U of chapter 69 of the General Laws, as of the effective date of this act, the school district shall include in their 3-year plan pursuant to subsection (c) of section 1S of said chapter 69 when they expect to implement such curriculum.

SECTION 9. School districts shall begin reporting required pursuant to paragraph (2) of subsection (a) of section 1V of chapter 69 of the General Laws in the 2026-2027 school year.

SECTION 10. Not later than December 31, 2027, the department of elementary and secondary education shall submit the first report required pursuant to subsection (b) of section 1V of chapter 69 of the General Laws.

SECTION 11. Section 4 of this act shall take effect on August 1, 2028.